COMMONWEALTH OF VIRGINIA

Information Technology Resource Management

Prohibited Hardware, Software and Services Policy

Virginia Information Technologies Agency (VITA)

ITRM Publication Version Control

ITRM Publication Version Control: It is the User's responsibility to ensure they have the latest version of this ITRM publication. Questions should be directed to VITA's Director for Enterprise Architecture (EA) Division within the Commonwealth Security and Risk Management Directorate. EA will issue a Change Notice Alert and post on the VITA Web site, provide an email announcement to the Agency Information Technology Resources (AITRs) and Information Security Officers (ISOs) at all state agencies and institutions of higher education as well as other parties EA considers to be interested in the change.

This chart contains a history of this ITRM publication's revisions.

Version	Date	Purpose of Revision
00	September 14, 2021	Initial Policy
Revision 00.1	November 4, 2021	Administrative Update Adding Banned Entities per Federal Register 2021-24123
Revision 00.2	December 16, 2022	Administrative Update Adding TikTok
Revision 00.3	April 24, 2023	Administrative Rewrite for Clarification
Revision 00.4	September 1, 2025	Administrative Update: Updated references from SEC501 to SEC530 and removed SEC525; Updated glossary hyperlink; Added DeepSeek prohibition to section 1.2 & 2.

Identifying Changes in This Document

See the latest entry in the table above

Vertical lines in the left margin indicate that the paragraph has changes or additions.
Specific changes in wording are noted using italics and underlines; with italics only indicating new/added language and italics that is underlined indicating language that has changed. Deleted language shall be noted by ~~striking it through~~.

The following examples demonstrate how the reader may identify updates and changes:

EXA-R-01 **Example with No Change –** The text is the same.

EXA-R-02 **Example with Revision –** This text is the same. *A wording change, update or clarification has been made in this text.*

EXA-R-03 **Example of New Text –** *This language is new*.

EXA-R-04 **Example of Deleted Requirement –** ~~This requirement was rescinded on m/dd/yyyy.~~

Review Process

Enterprise Architecture (EA) Review

The Enterprise Architecture team provided the initial review of the policy.

Agency Online Review

The initial policy was posted on VITA's Online Review and Comment Application (ORCA) for 30 days. All agencies, stakeholders, and the public were encouraged to provide their comments through ORCA. All comments were carefully evaluated and individuals that provided comments were notified of the action taken.

PREFACE

Publication Designation
ITRM Policy SEC528

Subject
Information Security Policy

Effective Date
9/15/2021

Compliance Date
9/15/2021

Supersedes
COV ITRM Policy SEC528-00.3

Scheduled Review
Two (2) years from effective date

Most Recent Review
9/1/2025

Authority
Code of Virginia, §2.2-2009(H) (Additional Powers of the CIO relating to security)
Code of Virginia, §2.2-603
(Authority of Agency Directors)

Scope
This policy is applicable to all public bodies covered by Virginia Code § 2.2-5514, including the Commonwealth's executive, legislative, and judicial branches, as well as independent agencies and, institutions of higher education (collectively referred to as "Agency".) This policy is offered only as guidance to local government entities.

Purpose
To protect the Commonwealth by notifying public bodies of any hardware, software or services that have been prohibited for use in the Commonwealth.

General Responsibilities
(Italics indicate quote from the Code of Virginia requirements).

Chief Information Officer of the Commonwealth
In accordance with Code of Virginia, § 2.2-2009, section H, The CIO shall promptly notify all public bodies as defined in § 2.2-5514 of hardware, software, or services that have been prohibited pursuant to Chapter 55.3 (§ 2.2-5514).

Chief Information Security Officer
The Chief Information Officer (CIO) has designated the Chief Information Security Officer (CISO) to develop Information Security policies, procedures, and standards to protect the confidentiality, integrity, and availability of the Commonwealth's information assets.

Virginia Information Technologies Agency (VITA)
At the direction of the CIO, VITA leads efforts that draft, review and update technical and data policies, standards, and guidelines for information technology and related systems. VITA uses requirements in IT technical and data related policies and standards when establishing contracts, reviewing procurement requests, agency IT projects, budget requests and strategic plans, and when developing and managing IT related services.

Executive Branch Agencies
Provide input and review during the development, adoption and update of statewide technical and data policies, standards and guidelines for information technology and related systems.

Judicial and Legislative Branches
In accordance with the Code of Virginia §2.2-2009: "The CIO shall work with representatives of the Chief Justice of the Supreme Court and Joint Rules Committee of the General Assembly to identify their needs."

Glossary of Security Definitions
As appropriate, terms and definitions used in this document can be found in the COV ITRM IT Glossary. The COV ITRM IT Glossary may be referenced on the ITRM Policies, Standards and Guidelines web page at https://www.vita.virginia.gov/policy--governance/governance/cov-it-glossary/

Related ITRM Policy
Current version of the COV ITRM Policy: SEC519 IT Information Security Policy; *SEC530* Information Security Standard; ~~SEC525 Hosted Information Security Standard;~~ SEC520 Risk Management Standard.

TABLE OF CONTENTS

1. PROHIBITED TECHNOLOGIES POLICY 1

1.1 Background 1
1.2 Guidance 1
1.3 Statement of Policy 2

2. PROHIBITED SERVICES, HARDWARE AND SOFTWARE 2

3. COMPLIANCE 3

4. PROCESS FOR REQUESTING EXCEPTIONS 3

1. PROHIBITED TECHNOLOGIES POLICY

1.1 Background

The Commonwealth of Virginia (COV) utilizes numerous information technology services, hardware and software to support the missions of its agencies.

The Commonwealth and the federal government have identified some services, hardware and software that are prohibited for Commonwealth usage. The CIO is charged to promote awareness of prohibited hardware, software, or services, per Virginia Code § 2.2-2009(H): The CIO shall promptly notify all public bodies as defined in § 2.2-5514 of hardware, software, or services that have been prohibited pursuant to Chapter 55.3 (§ 2.2-5514).

Virginia public bodies may not use (directly or indirectly) hardware, software, or services that are prohibited, as listed in this policy. Virginia public bodies also should ensure that their contractors do not use such hardware, software, or services.

1.2 Guidance

Some hardware, software, or services are prohibited by federal authorities and, as a result, by Virginia law. See Va. Code § 2.2-5514. This policy provides a central list.

The Commonwealth also may prohibit information technology that is not prohibited by the federal government.

Various federal entities and sources provide identification of certain prohibited services, hardware, and software, including:

- Section 889 of the of the John S. McCain National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2019 (Pub. L. 115-232) and implementing Federal Acquisition Regulation (FAR) rules and guidance from the Department of Defense (DoD), General Services Administration (GSA), and National Aeronautics and Space Agency (NASA). More information about federal contracting requirements and rules may be found from the above entities and/or by visiting https://www.acquisition.gov/Section-889-Policies.
- Division R of the December 2022 omnibus spending bill (the Consolidated Appropriations Act, 2023), and implementing standards and guidelines led by the Office of Management and Budget (OMB).
- The Federal Acquisition Security Council (FASC), an interagency federal body focused on supply chain risk management.
- The Cybersecurity & Infrastructure Security Agency (CISA), a component of the Department of Homeland Security.

Federal government prohibitions bar obtaining (through a contract or other instrument) certain telecommunications equipment (including video surveillance equipment) or services produced by the covered entities and their subsidiaries and affiliates.

Note that TikTok is prohibited both by the Consolidated Appropriations Act, 2023 and by Executive Order 24 (EO24), issued by Governor Youngkin on December 16, 2022, and available from the Governor's Office's website.

Note that DeepSeek is prohibited by Executive Order 46 (EO46), issued by Governor Youngkin on February 11, 2025, and available from the website of the Governor's Office.

1.3 Statement of Policy

It is the policy of the COV (*see* Virginia Code §2.2-603(F) that each Agency Head is responsible for securing the electronic data that is held by the agency and shall comply with the requirements of Virginia Code § 2.2-2009. Information security policies, standards, and guidelines promulgated pursuant to § 2.2009 shall apply to the Commonwealth's executive, legislative, and judicial branches and independent agencies. Per §2.2-2009 (H), the CIO shall promptly notify all public bodies as defined in § 2.2-5514 of hardware, software, or services that have been prohibited pursuant to Chapter 55.3 (§ 2.2-5514).

This policy notifies public bodies that they may not use (directly or indirectly) prohibited hardware, software, or services and informs public bodies of current prohibitions. Public bodies also should not enter into, extend, or renew a contract with an entity that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

2. Prohibited Services, Hardware, and Software

Currently Prohibited:

Telecommunications equipment, systems, or services, or video surveillance and telecommunications equipment produced by any of the following entities, or any subsidiary or affiliate of such entities:

- Huawei Technologies Company
- ZTE Corporation
- Hytera Communications Corporation
- Hangzhou Hikvision Digital Technology Company
- Dahua Technology Company

Any hardware, software, or service developed by or provided in whole or in part by the following or any successor or related entity:

- Kaspersky (formerly known as Kaspersky Lab)[1]

Virginia public bodies should also note the Export Administration Regulations provisions related to the following entities (with the associated country in parentheses):[2]

- Candiru (Israel)
- NSO Group (Israel)
- Positive Technologies (Russia)
- Computer Security Initiative Consultancy PTE LTD, a.k.a. COSEINC (Singapore)

TikTok and any successor application or service developed by ByteDance Limited or any other entity owned by ByteDance Limited. (federal prohibition)

[1] *See https://www.acquisition.gov/far/52.204-23.*

[2] *For more information, see https://www.federalregister.gov/documents/2021/11/04/2021-24123/addition-of-certain-entities-to-the-entity-list.*

TikTok, WeChat, and other applications developed by ByteDance Limited or Tencent Holdings Limited on government-issued devices, state-owned or leased equipment, and Commonwealth owned, operated, or maintained networks. (state prohibition)

> *DeepSeek AI Application, and other applications developed by Hangzhou DeepSeek Artificial Intelligence Basic Technology Research Co., Ltd., on government-issued devices, state-owned or leased equipment, and Commonwealth owned, operated, or maintained networks. (state prohibition)*

Note that the Commonwealth and the federal government may add new suppliers, contractors, or technologies to the prohibited list.

Questions about prohibitions may be directed to CommonwealthSecurity@vita.virginia.gov.

3. Compliance

Compliance with applicable prohibitions on use and contracting is mandatory for all public bodies, as defined in Virginia Code § 2.2-5514(A).

4. Process for Requesting Exceptions

A state public body may request an exception through the following process. If the head of an agency determines that compliance with the provisions of this policy or any related information security standards would adversely impact a business process, the agency head may request approval to deviate from a specific requirement by submitting an exception request to the CISO. For each exception, the requesting agency shall fully document:

- The business need;
- The scope and extent;
- Mitigating safeguards;
- Residual risks;
- The specific duration; and
- Agency head approval.

Each request shall be approved by the agency head, indicating acceptance of the defined residual risks, prior to submission to the CISO. Requests for exception shall be evaluated and decided upon by the CISO, and the requesting party informed of the action taken. An exception cannot be processed unless all residual risks have been identified and the agency head has approved, indicating acceptance of these risks. Denied exception requests may be appealed to the CIO of the Commonwealth.